

TENTATIVE RULING

Octavio Lopez, et al. v. Barajas Ramirez, et al. (24CV004364)

Motion for Determination of Good Faith Settlement filed by Defendants and Cross Defendants Didde Sivaraj and Chinta Rajakumar:

Defendants and Cross-Defendants Didde Sivaraj and Chinta Rajakumar (“Defendants”) request a determination by the Court pursuant to California Code of Civil Procedure section 877.6 that their settlement with the Plaintiffs in this action was entered into in good faith and therefore bars any present or future claims against Defendants for contribution, equitable indemnity, comparative indemnity, or related claims arising from the subject matter of this litigation. No opposition was filed.

The Motion for Determination of Good Faith Settlement is **GRANTED**.

“Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005.” (Code Civ. Proc. § 877.6(a)(1).) The factors to be taken into account in the determination of whether a settlement is in good faith include “a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial.” (*Tech-Bilt, Inc. v. Woodward-Clyde & Assocs.* (1985) 38 Cal.3d 488, 499.) “Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.” (*Ibid.*) “Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. [A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.” (*Ibid.*, internal citations omitted.)

The court has considered the factors enumerated in *Tech-Bilt, Inc. v. Woodward-Clyde & Assocs.* (1985) 38 Cal.3d 488, and *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261. The court finds that the settlement for \$12,500 is not grossly disproportionate to what a reasonable person at the time of the settlement would estimate for the settling defendants’ exposure in this lawsuit. No opposition was filed, and it would have been the burden of other defendants to show the lack of good faith. (See Code Civ. Proc., § 877.6(d).)

Defendants are to prepare the court’s order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court’s order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.